

Code of Conduct for Participants

of the European Society of Occupational Safety and Health (ESOSH)

Introduction

Honesty is one of the principal qualities of a person. As members of the European Society of Occupational Safety and Health (ESOSH), we are committed to the fundamental principles of honesty, transparency and openness. Upholding these principles is of the utmost importance for preserving respect for and trust in our activities in accordance with the vision, mission, purpose and objectives of our Society.

The purpose of this Code of Conduct is to provide ESOSH participants with ethical guidance consistent with the highest European standards and rules of conduct governing anti-corruption matters, conflicts of interest and confidentiality.

The Code sets out the basic standards of conduct, while not restricting the ability to carry out professional and public activities.

We call upon all members of ESOSH to ensure that honesty remains at the centre of our actions and that the principles of the Code are observed in the performance of our activities, which serve the preservation of the highest value — human life and health.

Olha Bohdanova

Chair of the Board of ESOSH

Dmytro Hryhorenko

Director General of ESOSH

Code of Conduct for ESOSH Participants

Purpose of the Code of Conduct — to provide ESOSH participants with criteria to be followed in the performance of their professional duties. It sets out the general principles of conduct that our Society expects of its members. By adhering to these standards, participants may maintain and enhance the level of openness and accountability necessary to sustain trust in ESOSH.

Scope of the Code of Conduct — applies to all participants with respect to aspects of their professional activities in the field of occupational safety and health. The Code may be supplemented by other rules of conduct and organisational discipline adopted by the Board of ESOSH that do not conflict with this Code.

General Principles of Conduct

1. In their professional activities, ESOSH participants:

1.1 share the Society's vision that life is the highest value, and do everything possible to prevent any harm to human life and health;

1.2 fulfil the mission — to shape safety-oriented thinking and to promote leadership in occupational safety;

1.3 pursue the purpose — to develop their own professional competence and to become a source of development for others;

1.4 achieve the following objectives:

- disseminate knowledge obtained from qualified, experienced specialists in the field of safety;
- join efforts with other specialists who share the aspiration for safe work and European values;
- promote an attitude to occupational safety as a moral obligation.

2. In performing their professional duties, ESOSH participants:

2.1 perform occupational safety duties responsibly, diligently and honestly;

2.2 when taking decisions in their professional activities, are guided primarily by the interests of society and act for the purpose of preserving human life and health;

2.3 are guided by the principles of transparent reporting on occupational injuries and occupational diseases in the workplace, in no way concealing the real causes of incidents, and doing everything within their power to ensure an objective and impartial investigation and to prevent the recurrence of such incidents in the future;

2.4 act in a manner that strengthens the reputation of ESOSH and comply with the provisions and rules of the organisation approved by the Board of ESOSH;

2.5 promote and support the core principles and foundations of ESOSH:

- honesty;
- access to advanced knowledge in occupational safety;
- continuous improvement,

taking a leading role and serving as an example.

3. ESOSH participants undertake to comply with the following Rules of Conduct:

3.1 respect the values of ESOSH and common European values, and refrain from any actions that could harm the reputation or standing of ESOSH or its participants;

3.2 avoid conflicts between any actual or potential economic, commercial, financial or other interests at the professional and personal level, on the one hand, and the public interests in the work of ESOSH, on the other, resolving any such conflicts in favour of the public interest; if an ESOSH participant is unable to avoid a conflict of interest, such conflict must be disclosed to the Board of ESOSH;

3.3 do not use their participation in ESOSH to advance their own interests or the interests of another person or entity through actions incompatible with the Code of Conduct;

3.4 do not use for personal purposes confidential information to which they have gained access by virtue of membership in ESOSH.

4. ESOSH participants act in accordance with the Code of Conduct on the prevention of and counteraction to corruption. In this regard, ESOSH adheres to the highest ethical standards and to both the letter and the spirit of all applicable anti-corruption laws and regulations in force in the countries where ESOSH participants carry out their activities (hereinafter — the “Anti-Corruption Legislation”):

4.1 all participants, employees and representatives of ESOSH, and third parties acting on behalf of the Society, are prohibited from committing or inducing anyone to commit acts prohibited by the Anti-Corruption Legislation;

4.2 all of the above persons must ensure that all arrangements with third parties, in both the private and the public sectors, are concluded in accordance with the applicable laws of the country in which the activity is carried out, as well as with standards of good faith and integrity;

4.3 ESOSH values the integrity and transparency of all transactions and opposes and does not recognise any corrupt acts, regardless of by whom they are committed;

4.4 ESOSH participants must not permit corruption offences — acts containing elements of corruption:

- the use by a person liable for corruption offences of official powers conferred upon them, or of opportunities related thereto, for the purpose of obtaining an unlawful benefit;

- participation in acts committed by a person liable for corruption offences, for which criminal, disciplinary and/or civil liability is established by law;

4.5 of all threats or suspicions of possible corruption offences, or of the fact of their occurrence, of which an ESOSH participant becomes aware and which relate directly to their professional activities or to the activities of the Society as a whole, the ESOSH participant must notify the Board of ESOSH.

5. All members of ESOSH, when taking part in the Society's events and when referring to their participation in the Society, assume the following obligations:

5.1 to show respect for the values of ESOSH;

5.2 to demonstrate openness and transparency of their activities;

5.3 to maintain neutrality, impartiality and objectivity;

5.4 the obligation to act within the applicable legal framework of the country in which ESOSH carries out its activities;

5.5 the obligation to maintain order and the rules of propriety, ensuring civilised and orderly relations in accordance with the rules and established business practice;

5.6 the obligation to behave courteously, politely and respectfully towards one another, and to refrain from any actions that may disrupt the course of organised events;

5.7 the obligation to refrain from any discrimination on grounds of gender, social status, language, ethnicity or other characteristics that deny or diminish the equal exercise of the rights of ESOSH participants and other persons;

5.8 all participants shall make a declaration to the Board of ESOSH if they have professional, personal or economic interests that conflict with the activities of the Society.

Compliance with the Code of Conduct

In carrying out their professional activities, ESOSH participants undertake to comply with the principles and rules set out in the Code of Conduct.

Where there are grounds to believe that a participant has acted in breach of the Code of Conduct, the Board of ESOSH is entitled to require explanations or additional information from that ESOSH participant or from other members of the Society who may clarify the situation.

If the Board of ESOSH determines that the participant has breached the Code of Conduct, the Board shall decide on the participant's expulsion from membership of the Society within the scope of its powers and in accordance with the applicable legal framework of the country in which ESOSH carries out its activities.

15 March 2019